



Disciplinary Action Policy

Coforge

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Version Change History8

1. Objective

- 1.1. To encourage employees to achieve and maintain satisfactory standards of conduct.
- 1.2. To ensure that all issues of misconduct are managed and dealt with in a fair & consistent manner, giving all concerned adequate opportunity to present their case.

2. Scope

- 2.1. This policy is applicable all Regular, H&S Grade, Trainees, Retainers and Outsourced staff of Coforge Limited and its subsidiaries.
- 2.2. The policy is deemed to be incorporated in the service conditions of employees, existing or to be appointed, whether working at company premises and/or Customer/Client locations.
- 2.3. The policy also applies to places, whether in company premises or outside(extended workplaces) , visited by employees due to employment in Coforge Limited e.g. formal/informal parties, functions, get-togethers, etc. including company provided transport.

3. Policy Statement

- 3.1. Employees shall be subject to disciplinary action for misconduct including but not limited to disloyalty, any act of indiscipline, insubordination, indolence, malfeasance or other behavioral issues (hereinafter referred to as "Misconduct").
- 3.2. Employees are expected to meet highest level of personal and professional conduct. If any employee fails to conform to proper standards, he/she will be subject to progressive disciplinary action as enumerated in Point 4.1.
- 3.3. Factors that shall be considered while deciding on appropriate disciplinary action are:
 - 3.3.1. Historical incidents of misconduct and instances of recurrence.
 - 3.3.2. The gravity of the misconduct.
 - 3.3.3. The time interval and employee's response to prior disciplinary action(s).
 - 3.3.4. Previous work history, standing, achievement of the employee.

4. Disciplinary Matrix

In the matrix mentioned herewith, issues refer to a broad category of concerns that come up in the organization.

Instances that are commonly observed in the organization have been listed below along with a guideline on the recommended action. However, this is subject to discretionary change depending on the severity of the issue. Therefore, this document should be used as a reference guide.

Deviations from the recommended solutions would need an approval from the VDH/Function Head/Service Line Head, the CPO and the Legal Head.

4.1. Levels of Misconduct and Disciplinary Measures

Level	Definition	Probable Disciplinary Measures
Level I	Any act not in line with the general conduct that constitutes good corporate behaviour.	Verbal/Written Warning

Level II	i) Misconducts that have serious consequences but done unintentionally/ which do not have serious consequences, but does not comply with the expectations of Coforge Limited or ii) Failure to take corrective action on Level I Warning.	Written Warning and any or combination of the following: i) Withholding Promotion ii) Withholding Increments iii) Withholding onsite opportunities iv) Demotion from Managerial Role to Individual Contributor Role v) Transferring the employee to another location
Level III	i) Serious misconduct wherein the delinquent employee has been found to have compromised with the values of Coforge Limited reputation of the company, commitment to customers (internal and external) and/or investors, policy and procedures resulting into financial/ reputation loss to Coforge Limited or posing serious security concerns, affecting Coforge Limited market image or having major financial/ legal implications. ii) Failure to take corrective action on Level II Warning	Termination of services by way of dismissal

4.2. Nature and Level of Misconduct

S.No.	Nature of Misconduct	Level of Misconduct
1	Habitual late attendance, habitual leave, absence without leave	L I
2	Sleeping in Working Hours	L I
3	Unprofessional conduct (using profanity, degrading & inappropriate jokes, displaying inappropriate materials)	L I
4	Tailgating / Using physical access of other colleagues	L I
5	Using Company's resources for personal requirements / Using Company resources or facilities without authorization	L I
6	Overstaying leave without obtaining consent for the same from appropriate Authority	L I/ L II
7	Going on leave without proper authorization as per process	L II
8	Preaching religious practices within the premises / through the use of company's facilities or resources/ Sending messages / communication against any caste, religion or race	L II
9	Misuse of email – esp. forwarding chain mails which are not of official nature	L II
10	Habitual neglect of work	L II
11	Causing willful damage to the organization's property	L II
12	Failure to take corrective action posts level 1 disciplinary measure	L II
13	Violation of security policy or procedure	L II/ L III
	Installation of unauthorized / illegal software on company provided laptops/ desktops	
	Downloading Shareware / freeware without approval	
	Access any network, services, software within Coforge Limited or its client's network by unlawful, unauthorized means	
	Access pay sites, gambling, personal commercial benefits or money laundering sites	
	Making unauthorized copies of licensed software or copyrighted material	
14	Compromising with Data Privacy Policies and Procedures	L II/ LIII

	Leaving documents containing PII (Personally Identifiable Information) or leaving a computer screen unattended with unsecured PII in an accessible area.	
	Posting any PII related to client's individual on social media web sites or sending e-mail to the incorrect recipient.	
	Discussing PII with colleagues, allowing other users to use your workstation/log-in credentials to access a PII, sharing passwords or other log-in credentials.	
	Knowingly and intentionally releasing PII, in any form, to unauthorized individuals without authorized consent of the data subjects (owner of information)	
	Intent of personal gain by accessing PII or intentionally altering data / removing PII from any record, whether paper or electronic data.	
	Selling, releasing, or otherwise disclosing PII for personal gain, or with malicious intent or illegal activity	
15	Act that has direct/indirect impact on the service level of the client/customer	L II/L III
16	Breach of Professional Integrity	L II/ L III
17	Violation of Company's Code of Conduct	L II/ L III
18	Threatening/Intimidating/Coercing/ Abusing any colleague	L II/ L III
19	Misstating material facts in the employment application process / Recruitment Process regarding one's name, age, qualification, previous service, etc.	L III
20	Being under the influence of alcoholic beverages / banned drugs while on duty	L III
21	Disclosing to any unauthorized person any confidential information	L III
22	Failure to take corrective action on written reprimand / post Level II disciplinary action	L III
23	Serious violations of policy and procedures resulting into financial / reputation loss to the organization or posing serious security concerns / affecting Coforge Limited's market image or having major financial / legal implications	L III
24	Taking /giving bribes or an illegal gratification whatsoever in connection with Coforge Limited's business or one's own interests	L III
25	Physical violence / Bullying / Assaulting in workplace	L III
26	Undertaking additional employment whether for any consideration or not / Operating a business, usurping business opportunities, organized political activity.	L III
27	Abuse of company policy / facilities	L III
28	Theft or fraud in company premises, including material objects as well as critical information asset and not limited to misuse of the credit cards, belongings of other colleagues	L III
29	Dishonesty with claims/ reimbursements	L III
30	Sharing/viewing / printing / downloading / mailing of objectionable material or forwarding the same to other associates with an ulterior motive of causing embarrassment	L III
31	Indulging in hacking	L III
32	Making statements on behalf of the organization without prior authorization or using Coforge Limited trade names, logos, or trademarks without prior written authorization	L III
33	Reveal or publicize confidential or proprietary information which includes, but is not limited to: financial information, new business and product ideas, marketing strategies and plans, databases and the information contained therein, customer lists, technical product information, computer software source codes, computer/network access codes, and business relationships	L III
34	Submission of fake Documents / certificates	L III
35	Breach of Employment Agreement	L III
36	Discrimination against gender, race, socio economic background	L III

37	Misrepresentation of the employer, revealing client & process names on web space or in person to unauthorized personnel	L III
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4.3. Instances of Misconducts

Instances	Level I	Level II	Level III
1 st Instance	Counselling + Verbal Warning/ Written Warning	Warning Letter I	Termination
2 nd Instance	Warning Letter I/II	Warning Letter II	NA
3 rd Instance	Termination	Termination	NA

4.4. Authority Matrix for implementation of disciplinary action is:

Action	Decision Making Panel
Counselling + Verbal Warning	Supervisor + HR
Warning Letter	Supervisor + Reviewing Manager + BHR
Termination	Reviewing Manager/ODC Head + BHR + BHR Manager

5. Redressal Process

- 5.1. A show cause letter is to be issued by HR, within 24 hours of the incident been reported, seeking the employee's explanation to the allegation.
- 5.2. Based on the explanation received from the employee, action is to be taken as defined as per the level of Misconduct defined in the Disciplinary Matrix above.

6. Appeals Procedure

- 6.1. Any employee who refutes the allegations has the right to appeal if, for example:
 - 6.1.1. As per employee, the finding or penalty is unfair.
 - 6.1.2. As per employee, the disciplinary procedure was not followed properly.
- 6.2. Appeals must be lodged in writing with HR within 7 working days of the date of receipt of show cause/warning letter/dismissal. This period may be extended only in exceptional situations by HR. The notice of appeal must state the grounds of the appeal.
- 6.3. Appeals will be heard within 7 working days from the date of receipt of the notice of appeal by the HR.
- 6.4. The Appeal Panel will include Reviewing Manager (Manager not below the rank of senior manager) and a representative of HR in an advisory capacity. Both parties to the appeal must provide a full written statement of the case including the grounds upon which the appeal is made/ resisted together with copies of any documents to which reference will be made. All documents and the details of witnesses, if any, must be notified to all parties within 5 working days prior to the date of hearing. The decision of the Appeal Panel will be final and binding on the employee.
- 6.5. Disciplinary Committee – A Committee comprising of three senior managers or above level officials of the Company shall investigate the matter and hear the appeal (hereinafter referred to as "Committee").

6.6. Should either party require an adjournment then this request should be made to the Committee, with an indication of the length of time required

6.7. The procedure for appeal is as follows:

6.7.1. The Company shall present the case first, explaining the reasons for the action they have taken, including calling of any witnesses.

6.7.2. The employee may ask any questions about the case which the company has presented.

6.7.3. The Committee members may also ask any questions.

6.7.4. The employee will then be asked to present the case to the panel, including calling of any witnesses.

6.7.5. The Company may then wish to ask the appellant any questions about their case.

6.7.6. The Committee members will also have the opportunity to ask any questions.

6.7.7. Both parties will have the chance to sum up their case.

6.7.8. There will then be an adjournment when both sides will be asked to leave the room while the Committee considers the information they have heard and reach their decision.

6.7.9. The decision of the Committee will be communicated to both parties verbally, following the adjournment wherever possible, and in any case will be confirmed later in writing (again to either party), not later than 5 working days after the Appeal Hearing.

7. Glossary: NA

8. References:

Code of Conduct

Version Change History

S. No	VER. NO	PREPARED BY	REVIEWED BY	REVISION DATE	RELEASE DATE	REASONS FOR NEW RELEASE
1	1	Jyoti Mehta	Sameer H Pande	7-Jun-13	7-Jun-13	Baseline Version
2	1.1	Jyoti Mehta	Sameer H Pande	25-Oct-13	30-Oct-13	Eligibility Criteria Redefined
3	2	Jyoti Mehta	Sameer H Pande	25-Mar-14	1-Apr-14	Annual Review
4	2.1	Balram Singh	Sameer H Pande	11-Dec-14	1-Dec-14	PIP Duration and Extension changed
5	3	Balram Singh	Sameer H Pande	25-Mar-15	1-Apr-15	Annual Review
6	4	Balram Singh	Sameer H Pande	25-Mar-16	1-Apr-16	Annual Review
7	5	Balram Singh	Rajeev Kumar	25-Mar-17	1-Apr-17	Annual Review
8	6	Shelly Goel	Rajeev Kumar	29-Mar-18	1-Apr-18	Annual Review Change in PIP
9	7	Samrina Anwar	Nadeem Khan	29-Mar-19	1-Apr-19	Removed Performance/PIP References; Revised Scope; Revised Approving Authority for Deviations; Modified Level for Misconducts; Added Data Privacy related Misconducts
10	7.1	Samrina Anwar	Nadeem Khan	1-Feb-20	1-Feb-20	Inclusion of Whishworks in scope of policy
11	8	Samrina Anwar	Nadeem Khan	1-Apr-20	1-Apr-20	Annual Review
12	9	Neha Dalal	Babita Karki	6-Jan-21	20-Jan-21	Revision of Probable Disciplinary Measures against Level II misconduct
13	10	Ankita Gupta	Ankur Beri	30-Sep-22	1-Jan-23	Annual Review

14	11	Diva Sharma	Ankur Beri	1-Aug-23	1-Aug-23	Annual Review
15	12	Arijit Deb Roy	Vibhanshu Agnihotri	10-Jan-25	10-Jan-25	Annual Review



About Coforge

Coforge is a global digital services and solutions provider, that leverages emerging technologies and deep domain expertise to deliver real-world business impact for its clients.

A focus on select industries, a deep domain understanding of the underlying processes of those industries and partnerships with leading technology platforms, enables Coforge to be a trusted partner of its clients in their transformation initiatives. Coforge leads with its Product Engineering approach and leverages AI, Cloud, Data, Integration and Automation technologies to transform businesses into intelligent, high growth enterprises. Coforge has 30 global delivery centers and is present in 23 countries.

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